

GENERAL TREATMENT CONSENT

Scope of Practice

Evolve Psychiatry offers outpatient psychiatric treatment for a wide spectrum of challenges. A comprehensive list is located on our website at www.Evolve-Psychiatry.com.

Scheduling

Practice Space

Services at Evolve Psychiatry are delivered via in-person sessions at designated clinic locations or through secure telehealth platforms. In-person sessions may take place in shared office settings where other mental health professionals also operate; however, Evolve Psychiatry functions as an independent practice and has no affiliation with other entities within those shared spaces. All services rendered by Evolve Psychiatry are the sole responsibility of its licensed clinicians and administrative team.

What To Expect

The initial visit starts with a thorough review of current complaints and background. By the end of the initial visit, the clinician will offer preliminary impressions and discuss treatment options. Oftentimes, a combination of psychotherapy and medication management is optimal. However, medication management alone or psychotherapy alone may suffice. If medications are prescribed, changed, or if the patient wishes to defer management and request additional time for treatment consideration, the clinician will conduct a follow-up visit in approximately two to four weeks. Depending on the patient's distress or acuity, this may be sooner or later than the usual follow-up times.

Special Note: One of the most important curative aspects of the psychiatric/therapeutic relationship is the goodness-of-fit between clinician/therapist and patient. Essentially, the initial visit is the patient's opportunity to determine if the clinician/therapist is a good fit. If either the patient or clinician determines their relationship does not feel to be a good match, a member of the Evolve Psychiatry staff will be glad to provide referrals to other mental health professionals. At any point during treatment via telehealth, if the clinical team determines a patient is better served in-person, the team will transition a patient's care to in-person visits, subject to clinician availability. Otherwise, our office will refer patients to an external clinician that may be more suitable for their care.

Potential Risks and Variability of Mental Health Treatment

Receiving mental health care—including psychiatric treatment, therapy, or both—carries both potential benefits and risks. While many patients experience relief or improvement, there are no guarantees of success. Outcomes may vary depending on the severity of symptoms, the patient's readiness for change, and the level of engagement in the treatment process.

Potential risks include:

- Emotional discomfort during sessions
- Medication side effects or drug interactions
- Treatment that may be less effective than expected or not effective at all
- Temporarily elicit strong emotions such as anxiety, sadness, guilt, or irritability.

These reactions may impact relationships, work, or functioning but are often short-lived and may indicate meaningful progress. Patients are encouraged to communicate any distressing responses to their clinician or therapist, as this can be a vital part of the therapeutic process.

Patients are entitled to ask questions, discuss their treatment plan, and have their concerns addressed. Treatment plans will be adjusted based on safety, effectiveness, and the patient's evolving goals and needs.

Office Visits

Evolve Psychiatry requires office visits on a regular basis for all patients. Appointment lengths are based on an estimated allotted time and can vary depending on the case. Patients are allowed a 10-minute grace period to join appointments after which they will be marked as a "no-show" and must reschedule. Late cancellations and no-shows are subject to fees in accordance with our financial policy. See the Evolve Psychiatry Financial Policy for more details.

Frequency of Visits

In general, once symptoms improve, follow-up visits are spaced out to monthly intervals or longer as determined mutually by the patient and provider/therapist. Patients undergoing routine maintenance management of non-controlled substances can be seen for follow-up visits at three-month intervals. Patients prescribed controlled substances must be seen at least once every 30 days for insurance requirements with the exception of cash pay patients who may be seen every 2 or 3 months. Alternative treatment structures and timeframes may be determined based on circumstances.

Forms

Patients are required to complete intake forms by NOON the day prior to their initial consultation. Failure to do so may result in their time slot being offered to patients on our urgent follow-up waitlist. Any patient charts marked incomplete will be moved to the end of our scheduling queue, and the appointment may be canceled.

Cancellation Policies

Office visits are scheduled based on patient's acuity, clinician's and patient's mutual availability, and clinic preferences with an aim to minimize disruption in daily operations. If the patient must cancel or reschedule an appointment, Evolve Psychiatry requires at least 48-hour notice (weekends not included). If the appointment is on a Monday, the cancellation must be made by the same hour on the preceding Friday. For cancellations that occur with less than 48-hour notice or failure to show to an appointment, the patient will be charged a fee due to committing the clinician to a time slot that could have been utilized by an alternate patient. This fee must be paid before another appointment may be scheduled. If the patient cannot fulfill this obligation, they will be dismissed from the practice and may be referred to a Community Mental Health Facility. See the Evolve Psychiatry Financial Policy for more details.

Communications

For detailed information regarding our Texas and California clinic addresses, as well as current appointment wait times, please visit the following links:

- [Texas Locations](#)
- [California Locations](#)

Please be advised: email, text messaging, and patient portal messaging are not appropriate methods for reporting urgent concerns or emergencies. In the event of a medical or psychiatric emergency, you must contact our office by phone or go directly to the nearest emergency room.

Portal Use

Evolve Psychiatry communicates important updates, scheduling confirmations, and appointment reminders through various secure channels. For non-urgent communication between sessions, we utilize HIPAA-compliant direct messaging via the OnPatient portal. With the patient's written consent, email and text messaging may also be used for administrative purposes, such as appointment reminders. We strongly encourage all patients to use the OnPatient portal for any correspondence related to clinical matters, as it offers a secure and reliable platform for communication with your care team.

Reminders

Automatic appointment reminders sent via email or text are provided as a courtesy. If a patient opts out of these reminders, they are still fully responsible for attending scheduled appointments and for any fees incurred from missed visits.

Clinicians

Licensing and Supervision

All psychiatric and therapeutic care at Evolve Psychiatry is delivered by clinicians who are either fully licensed or operating under lawful supervision, in accordance with applicable state laws and professional board regulations. These clinicians may include Psychiatrists (MD/DO), Nurse Practitioners (NPs), Physician Assistants (PAs), Licensed Professional Counselors (LPCs), Licensed Marriage and Family Therapists (LMFTs), Licensed Clinical Social Workers (LCSWs), and supervised trainees such as medical residents, NP/PA students, Licensed Professional Counselor Associates (LPC-As), Associate Marriage and Family Therapists (AMFTs), and Licensed Master Social Workers (LMSWs).

All services provided by non-licensed or associate-level clinicians are delivered under the oversight of a board-approved supervising clinician, ensuring compliance with training requirements and maintaining a high standard of clinical care. While patient confidentiality is protected by law and clinical ethics, patients acknowledge that aspects of their care may be discussed with supervising clinicians for purposes of professional development, clinical guidance, and quality assurance.

When services are rendered by a supervised clinician, insurance billing may be submitted under the supervising clinician's name and credentials, in accordance with payer requirements and legal standards. This billing arrangement does not affect the nature, quality, or scope of care received. All treatment remains subject to the ongoing oversight and accountability of the supervising licensed professional.

Clinician Substitutes and Reassignment

Evolve Psychiatry reserves the right to reassign a patient to a different clinician at its discretion. This may occur due to clinician unavailability, scheduling conflicts, clinical considerations, clinician-patient incompatibility, or other operational needs. Additionally, appointments may be rescheduled or moved to accommodate changes in clinician availability, including emergencies, schedule adjustments, or staffing constraints. Patients will be notified in advance whenever feasible, and efforts will be made to minimize disruption. In all cases, patients will be offered the

option to continue care with the reassigned clinician or to request a referral to an external mental health clinician. Continuity of care and clinical appropriateness will remain guiding principles in any clinician or scheduling transition.

Dismissals

Evolve Psychiatry reserves the right to terminate this agreement if a patient fails to comply with any policies or procedures related to treatment or violates any controlled substance laws or regulations. After dismissal, patients will no longer be able to schedule appointments, refill prescriptions, access the portal or contact Evolve Psychiatry for medical care; they must find another clinician or facility to transfer care. Evolve Psychiatry will send a discharge letter to the patient's last known address, via certified mail, notifying them of the dismissal. Evolve Psychiatry can forward a copy of medical records to the new provider after a signed consent form (ROI) has been submitted. However, the patient may still be eligible to participate in Evolve Psychiatry Therapy Services pending review by the clinical administrator. Dismissal reasons are, but not limited to, the following:

- Failure to reliably commit to scheduled appointments at least once every 90 days for medication management or once a month for therapy
- Having greater than 2 late cancellations or no-shows in a 12 month period
- Deviating from clinician's instructions or agreed upon treatment plan
- Repeat requests of medication adjustments in between visits
- Using more controlled substances than prescribed or agreed upon
- Presenting to appointments under the influence or incoherent
- Filling psychiatric medications prescribed by an outside clinician
- Diverting or sharing medications with another individual
- Missing ordered labs on two or more occasions
- Abusive or threatening conduct toward staff or clinicians, including hostile, intimidating, or aggressive verbal or written communication that disrupts clinical operations or compromises a safe treatment environment. (Example: Escalating confrontational language or accusatory remarks that interfere with professional responsibilities.)
- Statements made with the intent to coerce or manipulate clinical decision-making, including emotional threats or implied consequences tied to medication, treatment approval, or care planning. (Example: Suggesting adverse outcomes will occur if a specific treatment demand is not met.)
- Use of legal threats, reputational harm, or grievance statements in a manner intended to pressure the clinical team into deviating from standard care or ethical guidelines. (Example: Announcing intent to pursue legal or administrative complaints in response to a clinically appropriate boundary or denial.)
- Dissemination of knowingly false, misleading, or defamatory claims about the practice, clinicians, or services—particularly when such claims appear to stem from disagreement with clinical judgment or enforced safety measures. (Example: Public accusations not grounded in fact that misrepresent clinical interactions or outcomes.)
- Failure to pay an outstanding balance within 30 days

Medical Records

Evolve Psychiatry is required, by law, to keep complete medical records. Most medical records will be electronic, encrypted, and stored securely. All records, including initial consent forms, letters, and internal and external medical documentation, are maintained in an electronic health record system for seven (7) years following the termination of services.

The patient may access the appropriate parts of the medical record through the patient portal at www.Evolve-Psychiatry.com. The patient is entitled to view their medical record at any time, unless such access is determined by the treating clinician to present a risk to the patient's emotional or physical well-being. In such cases, the clinician may recommend that the patient review the record in a clinical setting to reduce the risk of misinterpretation or distress. Time spent collecting, printing, copying, or summarizing medical records may incur fees as outlined in the Evolve Psychiatry Financial Policy.

Progress notes and clinical documentation may be made available upon written request but will be subject to a standard processing period of fifteen (15) business days. This timeframe allows the clinical team to review and prepare the records in a manner that preserves clinical integrity and patient safety. If a patient requests a copy of medical records to be sent to another physician or to themselves, a written authorization is required (ROI). The medical records department will notify patients of any applicable processing fees and additional costs. Only records generated by Evolve Psychiatry will be released. External records sent to Evolve Psychiatry must be requested directly from their originating sources.

Confidentiality

The security of sensitive information is of the utmost importance and Evolve Psychiatry is bound by law to protect patient confidentiality. Any disclosure of treatment to others will require explicit written consent on a Release of Information (ROI) form. If the patient sees another behavioral health provider, written consent from the patient is required for coordination of care and collaboration. In some cases, limited information may be shared with your insurance company for billing and authorization purposes, as allowed by law.

While confidentiality is a core component of treatment at Evolve Psychiatry, there are specific exceptions under state and federal law that require disclosure without client consent. These situations are rare in an outpatient setting, but when they arise, our clinicians make every effort to discuss the concern with the patient before taking action. In some cases, consultation with other clinical professionals may be sought without revealing the patient's identity.

Risk of Self-Harm or Suicide

If you are at imminent risk of harming yourself, we are required to take steps to ensure your safety, which may include involving family or support persons and arranging for hospitalization.

Threats to Others

- *California:* Under the **Tarasoff ruling**, we are legally mandated to notify law enforcement and the intended victim if a serious threat of physical harm is made.
- *Texas:* While not required, clinicians are allowed to take reasonable steps to protect potential victims, including contacting authorities or arranging hospitalization, under **Texas Health and Safety Code §611.004**.

Abuse or Neglect Reporting

In both states, we are required to report suspected abuse, neglect, or exploitation of anyone under the age of 18 or vulnerable adults (including elders and dependent adults) to Child or Adult Protective Services.

Grave Disability

If a patient's mental illness prevents them from meeting essential needs (e.g., food, water, shelter), clinicians are mandated to seek hospitalization or protective services under both California Welfare and Institutions Code §5150 and Texas laws regarding mental health commitments.

Legal Proceedings

In most cases, your clinician cannot testify about your care without your consent. However, courts may compel testimony if your mental health is deemed relevant to a legal matter (e.g., custody, criminal cases, or conservatorship).

Unsafe Driving Conditions

California: We are legally required to report certain conditions (e.g., severe seizures, dementia) that may impair your ability to drive to the Department of Motor Vehicles under Health and Safety Code §103900.

Texas: Reporting is not required but may be considered based on clinical judgment and discussed with you beforehand.

FOR AN ADULT UNDER LEGAL GUARDIANSHIP AND/OR CONSERVATORSHIP

When an individual is under the legal authority of a court-appointed guardian and/or conservator, Evolve Psychiatry requires valid written documentation confirming that appointment. Consent for psychiatric evaluation, treatment, or therapy will not be accepted without this legal verification.

All services will be provided in accordance with the qualifications of the treatment team, clinical referral protocols, and confidentiality practices outlined in this consent form.

Emergency Services and Limitations of Care

Evolve Psychiatry is an outpatient psychiatric clinic and does not provide emergency or crisis services. While our clinicians offer scheduled mental health treatment, including medication management, psychiatric evaluations, and therapy services, we are not available for urgent care or 24/7 support.

If you are experiencing a mental health emergency, such as thoughts of self-harm, harm to others, or overwhelming distress, please prioritize your safety and seek immediate support by calling or texting 988, the Suicide & Crisis Lifeline, which is available 24/7 and provides free, confidential support for people in emotional distress or mental health crises.

Safety Planning in Clinical Encounters

To help ensure patient safety during mental health treatment, especially in telehealth settings, your clinician may incorporate elements of a personalized safety plan. These may include:

- Verifying your current physical location at the start of each session
- Requesting the name and contact information of a local emergency support person
- Seeking your authorization to contact emergency services if you appear to be in imminent danger and unable to take action on your own

These measures are implemented with discretion and in the interest of protecting patient welfare.

Please note that communication methods such as email, text messaging, and portal messages are not continuously monitored and are not appropriate for urgent concerns. If you are in crisis or feel unsafe, you must immediately contact 988, the Suicide & Crisis Lifeline, or go to the nearest emergency room or mental health crisis facility.

Limits of Liability

Evolve Psychiatry, including its employees, contractors, and affiliated clinicians, shall not be held liable for any indirect, incidental, or consequential damages arising out of or related to treatment, except in cases of gross negligence or willful misconduct. This limitation reflects the inherent complexity, subjectivity, and variability of mental health care, and is intended to ensure mutual understanding of the risks and responsibilities involved in treatment.

Evolve Psychiatry does not warrant or guarantee any specific results, outcomes, or improvements from psychiatric or therapeutic services. Individual responses to treatment vary significantly and may be influenced by factors beyond the clinician's control, including but not limited to adherence to treatment recommendations, external stressors, and the progression of underlying conditions.

The patient agrees to hold harmless and indemnify Evolve Psychiatry, its clinicians, and staff from any claims, losses, liabilities, or expenses arising from the patient's noncompliance with recommended treatment plans, failure to follow clinical instructions, or misuse of prescribed services or medications.

Dispute Resolution

Any disputes arising out of or relating to this agreement shall first be subject to good faith mediation in Denton County, Texas. If unresolved, such disputes shall be submitted to binding arbitration in accordance with the rules of the American Arbitration Association. This agreement shall be governed by the laws of the State of Texas.